

CHAPTER 11.

An Act for taking the Census for Ireland in the year
nineteen hundred and eleven. [26th July 1910.]

BE it enacted by the King's most Excellent Majesty, by and
with the advice and consent of the Lords Spiritual and
Temporal, and Commons, in this present Parliament assembled,
and by the authority of the same, as follows :

Census to be
taken in 1911.

1. A census for Ireland shall be taken in the year nineteen
hundred and eleven in the manner herein-after directed, and
the census day shall be Sunday the second day of April in that
year.

Enumerators
and their
duties.

2.—(1) Such officers and men of the police force of Dublin
metropolis and of the Royal Irish Constabulary as the Lord
Lieutenant may direct, together with such other persons as the
Lord Lieutenant may appoint to assist therein, shall act as and
be enumerators for the purposes of this Act.

(2) Every enumerator shall, upon the Monday following the
census day, and such one or more next consecutive days as the
Lord Lieutenant may fix, visit every house within the district
assigned to him between the hours of half-past eight in the
forenoon and six in the afternoon, and take an account in
writing, according to such instructions as may be given to him
by the Chief or Under Secretary to the Lord Lieutenant, of the
number of persons who abode therein on the night of the census
day, and of the sex, age, religious profession, birthplace, and
occupation of all such persons; and, in the case of any person
who so abode being married, of the duration of marriage and
the number of children born of the marriage and the number of
such children living.

(3) Every enumerator shall take an account of the number
of inhabited houses and of uninhabited houses and of houses
then building within his district and of the number of rooms
occupied by any occupier who is in occupation of less than
five rooms; and shall also furnish such particulars as may be
directed as to the counties, boroughs, towns, districts, and other
areas for electoral or administrative purposes in which the
houses are situate.

(4) The enumerators shall also take an account of all such
further particulars as they may be directed to inquire into by
such instructions as are authorised to be issued under this Act.

(5) Every enumerator may ask all such questions of all
persons within his district respecting themselves or the persons
constituting their respective families, and respecting such further
particulars, as may be necessary for the purpose of taking the
said accounts.

3. The governor, master, or chief resident officer of every prison, workhouse, barrack, hospital, or lunatic asylum, and of every public or charitable institution which may be determined upon by the Lord Lieutenant, shall act as and be the enumerator of the inmates thereof, and shall conform to such instructions as may be sent to him by the authority of the Lord Lieutenant for obtaining the returns required by this Act, so far as may be practicable, with respect to such inmates, but the initial letters only of the Christian names and surnames of such inmates shall be stated in any such return.

Enumeration
in public and
charitable
institutions.

4. The Chief Secretary shall obtain returns of the particulars required by this Act with respect to all houseless persons, and all persons who during the night of the census day were travelling or on shipboard, or for any other reason were not abiding on that night in any house of which account is to be taken by the enumerators, and shall include such returns in the abstract to be laid before Parliament.

Provision as
to houseless
persons.

5.—(1) The Chief or Under Secretary to the Lord Lieutenant shall prepare and issue such forms and instructions as he may think necessary for the taking of the census, and the census shall be taken by means of and in the manner prescribed by those forms and instructions, and no question shall be put for the purpose of obtaining information other than the information required by those forms and instructions.

Forms and
instructions.

(2) Subject to such modifications as are required by or in pursuance of this Act, the forms and instructions issued under this section shall be to the like effect and contain the like matters and particulars only as the forms and instructions issued under the Census (Ireland) Act, 1900.

(3) The expenses incurred with the approval of the Treasury for the purposes of the census shall be paid out of moneys provided by Parliament.

63 & 64 Vict.
c. 6.

6.—(1) Every enumerator shall sign and certify the account taken by him, and make a statutory declaration, to the effect that the said account has been truly and faithfully taken by him, and that, to the best of his knowledge, the same is correct, so far as may be known, and shall deliver the same to such officer of the said police force, or of the Royal Irish Constabulary, or other person, as may be appointed by the Lord Lieutenant to receive the same from him.

Certificates of
accounts and
abstract of
returns.

(2) The accounts shall be examined, corrected, certified, and transmitted in such manner and within such time as the Lord Lieutenant may direct, and the same shall be digested and reduced into order, under the direction of the Chief or Under Secretary to the Lord Lieutenant, by the Registrar-General of Births, Deaths and Marriages in Ireland, and by such other persons as the Lord Lieutenant may appoint for that purpose.

(3) An abstract of the accounts taken under this Act shall be laid before both Houses of Parliament within twelve months

after the census day, if Parliament be then sitting, or, if Parliament be not then sitting, within the first fourteen days of the session then next ensuing.

Penalties.

7.—(1) If any enumerator makes wilful default in the performance of any of his duties under this Act, he shall for each offence be liable on conviction under the Summary Jurisdiction (Ireland) Acts to a fine not exceeding five pounds.

(2) If any person refuses to answer or wilfully gives a false answer to any question necessary for obtaining the information required to be obtained under this Act, he shall for each offence be liable on conviction under the Summary Jurisdiction (Ireland) Acts to a fine not exceeding five pounds: Provided that no person shall be subject to any such penalty for refusing to state his religious profession.

(3) If any person employed in taking the census communicates without lawful authority any information acquired in the course of his employment, he shall be guilty of a breach of official trust within the meaning of the Official Secrets Act, 1889, and that Act shall apply accordingly.

52 & 53 Vict.
c. 52.

Certificate of
population.

8. A certificate from the General Register Office, purporting to be signed by the Registrar-General of Births, Deaths and Marriages in Ireland, shall be admitted in any court of law as evidence of the population, at the census taken under this Act, of any county, borough, town, district or other area to which it refers, and the said Registrar-General shall be bound, if possible, to deliver such certificate to any person on payment of a fee of one shilling.

Short title.

9. This Act may be cited as the Census (Ireland) Act, 1910.

CHAPTER 12.

An Act to provide for the appointment of two additional Judges of the High Court. [26th July 1910.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Power to
appoint two
additional
judges.

1.—(1) It shall be lawful for His Majesty to appoint two judges of the High Court in addition to the number of judges of that court authorised to be appointed by the Judicature Acts, 1873 to 1902.

(2) The judges so appointed shall be attached to the King's Bench Division of the High Court subject to such power of transfer as is in the Supreme Court of Judicature Act, 1873, mentioned, and the law relating to the appointment and quali-

36 & 37 Vict.
c. 66.